SUDHIR Rentals

Sudhir Equipment Rental Company
شـــركة ســـودهير لتأجيـــر المعـــدات

QUOTATION

To: **Hi-Tech Arabian Limited Company**
Jeddah

Email: muhammad.karam@hitecharabia.com Contact No:966508083056

Quotation No: **SR-EQTN-2024-26026**
Date: 14-Nov-2024
Ref No: By Email
Project : Jeddah

Attention: **Mr Muhammad Karam ,**

Subject : Quotation for Equipments

Dear Sir,

With reference to your enquiry, please find our competetive Quotation as follows:

#	Description & Specifications	UOM	Qty	Unit Price (SAR)	Amount (SAR)
1	350 CFM Air Compressor 24 hours usage (For One Week and Extendable)	Week	1	3,800.00 /Week	**3,800.00**
2	TRANSPORTATION (MOB & DEMOB) CHARGES SUDHIR SCOPE	Trip	2	1,000.00 /Trip	**2,000.00**
**** Nothing Follows *****					

	Total Amount (SAR):	:	**5,800.00**
Amount in words : Six Thousand Six Hundred Seventy Saudi Riyals only.	(+) VAT @ 15%	:	870.00
	Net Amount (SAR):	:	**6,670.00**

We hope that our offer is in line with your requirements. Please indicate in your purchase order our Quotation Reference and acceptance to the terms & conditions.

A. The "**Owner**" is Sudhir Equipment Rental Company. or its duly appointed representative letting the Plant on hire.
B. The "**Hirer**" is the company, firm or person taking the Owner's Plant on hire.
C. The "**Plant**" covers all classes of plant, machinery, equipment and accessories which the Owner agrees to the Hirer.

RENTAL AGREEMENT TERMS AND CONDITIONS

This is a Rental contract. It shall not be construed as a purchase and sale agreement for the Plant. Hirer acquires no right, title or interest in the Plant except the right to use it so long as Hirer is not in default. Owner shall have the right to protect its security interest in the Plant at all times, and Hirer shall cooperate as requested by Owner.

1. TERM: The rental term shall commence on the date when the Plant leaves Owner's warehouse or, if applicable, another point of origin and shall continue until the returning Plant is received at Owner's warehouse or to such location as previously agreed by the parties in writing.

2. RENT: The Rental Rate set forth by this agreement between Owner and Hirer.

3. PAYMENT TERMS: All payments are to be made by cheques in favor of SUDHIR EQUIPMENT RENTAL COMPANY or transfer to the following account – SUDHIR EQUIPMENT RENTAL COMPANY, Saudi Awwal Bank (SAB). Account Number – 242283190001 IBAN – SA2845000000242283190001. Standard terms of payment are 100 % advance unless specified otherwise.
Delay in payments will allow Owner to deactivate the contract and return the plants to their facility without any notice to Hirer and Hirer will be responsible for all its consequences. If Hirer fails to fulfill any of the payment conditions set forth in this agreement, Owner may suspend performance, and any cost it incurs as a result shall be payable by Hirer.

4. INVOICE: Owner will generate monthly invoice and deliver to Hire. VAT amount will be added in all invoices. Hirer shall not be entitled to any offset, abatement or reduction of rent or charges whatsoever and agrees that its obligation to pay rent and charges is unconditional. Timesheet (If required) to be provided by the Hirer within 5th of every month. Otherwise, Hirer will accept invoices without timesheet issued by Owner and Hire will acknowledge the same with sign and company's stamp/seal. Owner will not accept any absent in the timesheet for public holidays, natural calamity or any other reasons. Quarterly balance

confirmation to be issued by the owner and Hirer has to acknowledge the same within 3 days.

5. TRANSPORTATION & SERVICES: Hirer shall be responsible for transportation of the Plant to the Job Site, by reputable transport operation, at its expense. If Owner agrees to provide transportation, Hirer should pay the transport charges to Owner as per the invoice raised by Owner and also provide access to the sites. Hirer will be solely responsible, at its cost, for preparation and selection of the Job Site. Owner ASSUMES NO LIABILITY AND OFFERS NO WARRANTY FOR THE FITNESS OF THE JOB SITE OR UTILITIES. Hirer has to arrange unloading and loading for hired plant at job site. Hirer will be responsible for any damages during loading & unloading at site and during transportation if arranged by the Hirer.

6. USE OF EQUIPMENT & HIRER OBLIGATIONS: Hirer is not allowed to use the Owner's plant (MEWP) in the following application: Sand Blasting, Painting/Glu Painting, Precast/Concrete batching Plant, Cement Factories, Crusher Plant, Off-Shore, Tunnels, Overhead Live Electrical Ware & Area Excluding Our Service Network. Hirer shall use the Plant only for the applications approved by Owner. Hirer shall keep the Plant in its sole possession and at the Job Site. Hirer shall properly operate and maintain the Plant in accordance with the highest standards of care and prudence and shall maintain complete records thereof. Hirer shall keep and return all hired Plant in good condition and working order (ordinary wear and tear excepted). Hirer shall obtain and maintain all permits and licenses required for the siting, possession, use, operation, maintenance, storage, transportation, installation, dismantling and servicing of the Plant. Owner shall not be liable if any authorization for any permits or licensing is delayed, denied, revoked, restricted or not renewed, and Hirer shall not be relieved thereby of its obligations to pay Owner. Hirer shall not move or alter the Plant without prior written consent of Owner. Owner may elect to take ownership of any alteration to the Plant made with or without its consent or to have Hirer restore the Plant to its prior condition at Hirer's expense. Hirer shall not paint the Plant or alter, cover, obscure or remove from the Plant any nameplate, Owner's logo or other identification label or marking, operating instructions or safety warnings or markings. Hirer's obligations include, but are not limited to, the following specific responsibilities: (i) provision of a suitable place for installation and use of the Plant, including provision of suitable electric current and ventilation together with all appropriate supporting facilities specified by Owner; (ii) ensuring that the Plant is operated in a careful, prudent and lawful manner; (iii) ensuring that the Plant is operated and maintained only by trained, competent, licensed (when required), and duly qualified personnel and in accordance with any manuals, instructions and manufacturer and Owner recommendations applicable to the Plant; (iv) compliance with all applicable codes and local, state and federal laws, rules and regulations in connection with the sitting, possession, use, operation, maintenance, storage, transportation, installation and dismantling of the Plant; (v) supply of all fuel, coolants, lubricants and other facilities of the proper grade, quality and type; (vi) prompt discontinuance of any use or attempted use of the Plant should it, at any time, be unsafe or in a state of disrepair and immediate notification to Owner of such situation; and (vii) return of the Plant in a clean condition. The prices charged by Owner for delivery, transportation, Connection/Disconnection Services and other "one-time" charges, the due dates of such charges and the start date of this lease assume accuracy of the information given to Owner with respect to Job Site conditions and locations and are subject to adjustment to the extent that the timing of or physical nature of access to the Job Site is or becomes limited, the Job Site does not have adequate qualities or is not properly prepared, utilities are not correctly located, provision of utilities is not timely or applicable licenses or permits are not provided in a timely manner, or Hirer otherwise causes delay.

7. DAMAGE & Theft OF THE EQUIPMENT: Hirer shall be liable to Owner for all loss or damage to the Plant during the term of this Agreement regardless of the cause and shall promptly notify Owner of same. Immediately upon demand, Hirer shall pay to either repair or replace the Plant. In addition, Hirer shall promptly pay to Owner all consequential, incidental and special damages resulting from the loss or damage, including the loss of rental revenues.

In case theft of Plant, Hirer will pay full amount to the owner equivalent to the actual cost of the Plant.

The hirer will be responsible for the puncture repairs on all the pneumatic tires, during the hire period. Technician will not be deputed for the puncture repair. Applicable equipment Compressors, Tight Towers, Forklifts etc.

8. COMPLIANCE WITH LAWS, CODES & STANDARDS: The rental price will be equitably adjusted to reflect additional costs incurred by Owner resulting from a change in applicable standards and regulations after the date of Owner's proposal and changes required to comply with regulatory or industrial requirements in the country of the Job Site. Hirer shall advise Owner of any such requirements. Reasonable adjustments will also be made to the Delivery Date and performance evaluation criteria. If Owner determines that a change is not possible, Owner can terminate this Agreement without bearing any costs therefore.

9. INSPECTION: Before PLANT is loaded for transportation to the Job Site, Hirer may require an inspection thereof by a qualified inspector acceptable to Owner. If Hirer does not inspect the Plant, then Hirer is conclusively deemed to have accepted that the Plant is in good and safe working order and condition. Owner shall have the right at any time to enter the Job Site premises for the purpose of inspecting the Plant and the Job Site. Third party inspection will be arranged by the owner before it's expiry which is subjected to information provided by the hirer prior to 1 month before inspection expiry.. Any absent in the timesheet occurred by inspection will not be approved / accepted by the owner.

10. SERVICES: HEALTH AND SAFETY MATTERS: Hirer will take all necessary precautions, at all times, to ensure the safety of Owner and other personnel at the Job Site. This includes, but is not limited to, instruction on Hirer's safety practices, proper and safe handling of hazardous substances and protection of Owner's personnel from exposure thereto, energization and deenergization of all power systems (electrical, mechanical and hydraulic) using a safe and effective lock-out tag procedure, and conducting periodic safety meetings during construction and start up Owner may, from time to time, conduct safety audits, but neither their conduct or non-conduct nor the making of any recommendation by Owner shall relieve Hirer of the responsibility to provide a safe place to work. The operation of Plant at the Job Site is the responsibility of Hirer. If Hirer requires or permits

Owner's personnel to operate plant at the Job Site, Hirer shall indemnify and save Owner, its employees and agents, harmless from all expense and liability (including attorneys' fees) incurred by or imposed upon Owner, its employees and agents, based upon injury to persons (including death) or damage to property resulting from operation of Plant at the Job Site by Owner personnel. If, at the Job Site, Owner encounters toxic substances, hazardous substances or hazardous wastes (such terms may be defined in any statute or ordinance or regulations promulgated by any federal, state, or local governmental authority of the of the country of the Job Site) (collectively, the "Hazardous Materials") which required special handling and/or disposal, Hirer shall immediately take whatever precautions are required to legally eliminate such hazardous conditions so that the work under the Agreement may safely proceed and or the time required for performance of any part of the work, an equitable adjustment shall be made in the price and schedule. Hirer agrees to properly dispose of all Hazardous Materials produced or generated in the course of Owner's work at the Job Site. Hirer shall indemnify and defend Owner or any and all claims, damages, losses, causes of action, demands, judgments and expenses arising out of or relating to any Hazardous Materials present on the Job Site prior to the commencement of Owner's work, improperly handled or disposed of by Hirer or brought on to the Job Site or produced thereon at any time by parties other than Owner.

11. DEFAULT: Hirer shall be in default under this Agreement if (i) Hirer shall fail to pay any rent or other amount required to be paid hereunder when it becomes due and payable; (ii) Hirer shall fail to perform or observe any other covenant, condition or agreement to be performed or observed by it hereunder and such failure shall continue unremedied for a period of 10 days after written notice thereof by Owner; (iii) any representation or warranty made by Hirer herein or in any document or certificate furnished by Hirer in connection herewith shall prove to be incorrect at any time in any material respect; or (iv) Hirer becomes bankrupt or insolvent or makes an assignment for the benefit of its creditors. Upon the occurrence of any such event, Owner may, at its option: (i) terminate this Agreement in whole or in part; (ii) require Hirer at Hirer's expense to return promptly all or any portion of the Plant to Owner, or Owner, at its option may enter upon the premises where such Plant is located and take immediate possession of and remove all or some of the Plant, all without liability to Hirer for damage to property or otherwise; or (iii) exercise any other right or remedy which may be available to it under any applicable law. No right or remedy of Owner referred to in this Agreement is intended to be exclusive, but each shall be cumulative and in addition to any other right or remedy otherwise available at law or in equity. Hirer shall pay all costs, charges and expenses, including attorneys' fees, incurred in retaking possession of the Plant or in the collection of any sums which may be due and owing to Owner hereunder. Except for the rights of Owner as expressly provided in this Section, this Agreement cannot be canceled or terminated.

12. EXECUSABLE DELAYS: Owner shall not have any liability or be in breach or default of its obligations under this agreement to the extent that performance of such obligations is delayed or prevented, directly or indirectly, due to: (i) causes beyond its reasonable control; or (ii) acts of God, act (or failure to act) of governmental authorities, fires, severe weather conditions, earthquakes, strikes or other labor disturbances, floods, war (declared or undeclared), epidemics, civil unrest, delays in transportation or car shortages; or (iii) acts or omissions of Hirer.

13. ENTIRE AGREEMENT: This Agreement constitutes the entire agreement between OWNER and HIRER, and supersedes any representations, warranties, course of dealing or agreements (written or oral) heretofore made or entered into between the parties relating to the PLANT.

4. GOVERNING LAW & DISPUTE RESOLUTION: This agreement shall be governed by the laws of KSA. All disputes arising in connection with this agreement shall be settled, if possible, by negotiation. If negotiation is unsuccessful, then the dispute shall be finally settled by legal courts of KSA.

15. INSURANCE: OWNER will provide insurance only for the hired Plant and any claim is subjected to acceptance and approved by the insurance company. Hirer will be responsible and pay the entire cost of damages and repair in the event of claim request rejected by the insurance company or in the event of Owner is not getting full claimed amount from the insurance company. In case loss / theft of Plant, Hirer will pay full amount to the owner equivalent to the actual cost of the Plant. Hirer shall, at its expense, obtain and throughout the term hereof maintain comprehensive commercial general/public liability insurance, in broad form including coverage for liability assumed under contract, providing coverage for bodily injury, including death, and property damage of any person or persons, including but not limited to agents or employees of Hirer arising from the Plant or its possession, use, operation, maintenance, storage, transportation, installation, dismantling or servicing, with a combined single limit of not less than $5 million (the "Liability Insurance"). Any and all deductibles under the Liability Insurance and Property Insurance shall be to the account of the Hirer which shall be responsible for payment of such amounts to Owner. The Liability Insurance and Property Insurance shall contain, and Hirer hereby agrees to, a waiver of subrogation in favor of Owner or its parent, subsidiaries and affiliates. Each of the Liability Insurance and Property Insurance policies shall provide that the insurer will give owner not less than 30 days' prior written notice of any cancellation or alteration of the policy. Hirer shall, upon commencement of the term hereof and upon demand by owner thereafter, furnish owner with a certificate of insurance demonstrating that the required insurance coverages are in effect. Hirer hereby appoints Owner as Hirer's attorney-in-fact to make claim for, receive payment of, and execute and/or endorse all documents, checks, or drafts with respect to any loss or damage under the Property Insurance.

16. PLANT REPLACEMENT: In the event of breakdown, Owner will assign service engineer as per availability. Replacement will be provided by the owner if breakdown is not repairable at job site. In the event of breakdown caused by any damages or misused by the Hirer, hirer will be responsible to return the unit to the owner's facility and take new unit to the job site. Replacement is subjected to the Plant availability at owner's facility. Owner will issue damage report and invoices which will be payable by hirer upfront. In case of breakdown, Hirer has to call Owner's Service Helpline Number : +966 50 999 3274 and

Email : Service@SudhirRentals.Com

17. WORKING HOURS: Maximum of 10 hours per day allowed for all Equipments except Generator (12 hours per day) & extra hours usage shall be charged on pro rata basis.

18. FRACK TANKS: In case tanks are used for anything other than brine water, Hirer shall pay extra amount for cleaning & disposal wasting per tank.

19. VALIDITY OF QUOTE : 7 Days from the Date of Quotation.

20. DELIVERY TERMS: Subject to availability & clearance of all overdue invoices, and approval from our credit monitoring department.

21. GATE PASS: Hirer is responsible for arranging necessary gate passes. No deduction shall be accepted in timesheets incase there is delay in issuing gate pass in the events of breakdowns & equipment mobilization/demobilization.

22. CONSEQUENTIAL LOSSES: The Owner accepts no liability or responsibility for any consequential loss or damage due or arising from any cause.

23. WORKING HOURS: Maximum of 10 hours per day allowed for all Equipments except Generator (12 hours per day) & extra hours usage shall be charged on pro rata basis.

24. TERMINATION OF SERVICES: The Owner reserves right to discontinue the services incase payment is not released as per the agreed terms. The owner shall not be responsible for any consequential losses.

Thanks & regards,

شركة سودهير لتأجير المعدات
الدمام
س.ت ٢٠٥٠١٣٠٠٥٣
C.R. 2050130053
Dammam
SUDHIR EQUIPMENT RENTAL COMPANY

Prepared By

Afzal Khan
Sales Support
Contact #: +966 55 680 7033
Email: afzalkhan@sudhirrentals.com

Quotation Acceptance by Hirer

Company Name	: **Hi-Tech Arabian Limited Company**
Authorized Signatory	:
Job Title	:
Date	:
Signature & Stamp	: